CASCADE, IOWA - November 3, 2026 - Source-linked research edition - Not adopted law

Iowa state-law definitions and proposed Cascade M-2 glossary

Original research date: October 28, 2026. **Chicago-note and legal-context revision:** November 3, 2026. **Open legal-dictionary revision:** November 4, 2026. **Status:** independent policy research and discussion draft, **not adopted City law**.

This is the source-linked companion to the November 3 M-2 proposed ordinance. It covers terms relevant to that ordinance, **not an exhaustive inventory of every definition in Iowa law**.

November 4 supplementary source review: LexisNexis Assist prompts/output and verification evaluates a proposed function-based definition and confirms that **§423.3(95)(f)**, not **§423.4's investment/refund thresholds**, defines the term for Iowa's tax program. This source does **not** change any of the 86 glossary entries or authorize a new M-2 category.

How to read this table: The 'State definition or statutory meaning' column contains an accurate short quotation where marked with quotation marks, or a **condensed restatement of the actual enacted state definition** where longer. Open the cited Iowa statute or rule for the **full, controlling verbatim wording and exclusions**. Statutory terms generally apply only **within the chapter, section, or administrative program specifying them**. This glossary does not automatically incorporate every definition into Cascade's zoning code, and Iowa's sales-tax definition does not control zoning eligibility.

> **Dictionary methodology (November 4, 2026):** The New York Law School Mendik Library's curated free legal-dictionary guide identifies the accessible sources used here. The tables retain the original **Oxford** and **Merriam-Webster general English** comparison columns and replace the unavailable commercial reference with separate **Cornell Law School Wex** and **FindLaw Legal Dictionary** columns. Cornell Wex is a free legal encyclopedia/dictionary; FindLaw offers free legal headwords, often licensed from the 1996 *Merriam-Webster's Dictionary of Law*. Every new comparison is an **original non-verbatim summary** linked to a **verified direct entry** or distinctly marked **related article**. A dash means **no directly matching entry was confirmed in this review**, not that one cannot exist. Compound technical terms and Cascade-proposed definitions should not be attributed to a dictionary unless the source actually defines them. These references are **secondary explanatory material**, never a substitute for controlling Iowa law or an adopted City ordinance.[64]

A. Definitions actually found in Iowa statutes and current administrative rules

Data center

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A building constructed or rehabilitated to house networked servers together at one site for centralized storage, management, and dissemination of information. The statute also includes supporting electrical, cooling, communications, fire-suppression, and security systems, and specifies leased facilities.

Official state definition and reference: 423.3(95)(f)(1)[1]

Legal scope / use in M-2: Sales-tax exemption definition; not itself a municipal zoning category.

Oxford English comparison / OED lookup 62: A large system of connected servers used to handle information. (Oxford Learner's lookup).

Merriam-Webster comparison 63: A facility housing computer equipment that stores and processes large quantities of data. (Merriam-Webster lookup).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Data center business

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "an entity whose business among other businesses, is to operate or lease a data center."

Official state definition and reference: 423.3(95)(f)(2)[2]

Legal scope / use in M-2: Sales-tax definition.

Oxford English comparison / OED lookup 62: An organization whose trade involves operating computing centers. (OED search; entry unverified).

Merriam-Webster comparison 63: A commercial enterprise that operates or rents facilities for computing equipment. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Site preparation activities

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Actions preceding data-center construction or rehabilitation, including grading, clearing, temporary construction facilities, exploratory excavation, and site evaluation. The statutory definition contains an equipment-purchase exclusion.

Official state definition and reference: 423.3(95)(f)(3)[3]

Legal scope / use in M-2: Sales-tax definition; review applicability before use in local permitting.

Oxford English comparison / OED lookup 62: Work that gets land ready for building. (OED search; entry unverified).

Merriam-Webster comparison 63: Tasks performed before a site is constructed or improved. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Land-use overview is contextual; it does not define the state tax term. (FindLaw: land use).

Building

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A fixed or movable combination of materials forming a structure that shelters people, animals, or property. It includes parts of buildings except where the context requires otherwise.

Official state definition and reference: 103A.3(2)[4]

Legal scope / use in M-2: State building-code definition; Cascade also defines building/structure in §165.41.

Oxford English comparison / OED lookup 62: A structure with walls and a roof, such as a factory or school. (Oxford Learner's lookup).

Merriam-Webster comparison 63: A usually permanent, roofed and walled structure. (Merriam-Webster lookup).

Cornell Law Wex (free) 64: Related Wex article (not this term): Real-property overview includes buildings permanently attached to land. (Cornell Wex: real property).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Property may include land and improvements; no standalone building entry is confirmed here. (FindLaw: property).

Construction

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Includes erection, reconstruction, alteration, conversion, repair, and equipping of buildings, structures, and facilities, along with applicable safety, sanitary, and materials requirements.

Official state definition and reference: 103A.3(5)[5]

Legal scope / use in M-2: Building-code context; different from site-preparation definition.

Oxford English comparison / OED lookup 62: The process of building or assembling something. (OED search; entry unverified).

Merriam-Webster comparison 63: The work of erecting or making a structure. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: Direct legal entry: Different legal sense: this entry concerns interpretation of statutes or contracts, not physical building work. (FindLaw: construction).

Equipment

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Plumbing, heating, electrical, ventilation, air-conditioning, refrigeration, elevator, escalator, and comparable mechanical installations.

Official state definition and reference: 103A.3(9)[6]

Legal scope / use in M-2: Building-code context.

Oxford English comparison / OED lookup 62: Tools or machines needed for a particular purpose. (OED search; entry unverified).

Merriam-Webster comparison 63: Articles or apparatus used to accomplish a task. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Owner

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Includes a premises owner and specified persons controlling a building or structure, including a mortgagee or vendee in possession, trustee, receiver, or lessee.

Official state definition and reference: 103A.3(19)[7]

Legal scope / use in M-2: Building-code scope; does not automatically determine zoning enforcement liability.

Oxford English comparison / OED lookup 62: A person or organization that possesses something as property. (OED search; entry unverified).

Merriam-Webster comparison 63: Someone holding ownership rights over property. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Real-property overview distinguishes ownership and other interests in land. (Cornell Wex: real property).

FindLaw Legal Dictionary (free) 64: Direct legal entry: An owner holds a recognized property interest or rights of control and possession. (FindLaw: owner).

Structure

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): An artificially built work or building formed of joined parts; §103A.3(24) expressly excepts public-utility transmission and distribution structures.

Official state definition and reference: 103A.3(24)[8]

Legal scope / use in M-2: Building-code scope; compare Cascade §165.41's existing definition.

Oxford English comparison / OED lookup 62: Something built by assembling parts into a whole. (OED search; entry unverified).

Merriam-Webster comparison 63: Something constructed or arranged with connected parts. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Real-property overview covers land and permanent improvements. (Cornell Wex: real property).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Property includes owned land or structures, but this is not an exact structure definition. (FindLaw: property).

Sustainable design

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Construction design that reduces negative environmental effects and improves occupant health and comfort through resource conservation, waste minimization, and healthier environments.

Official state definition and reference: 103A.3(25)[9]

Legal scope / use in M-2: State building code; not a mandate to obtain LEED certification.

Oxford English comparison / OED lookup 62: Planning buildings to conserve resources over time. (OED search; entry unverified).

Merriam-Webster comparison 63: Design methods intended to conserve materials, energy and environmental quality. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Development

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Includes construction and land alteration, subdivision, changing a structure or land's appearance or use, and increasing or changing use intensity; §18B.2 also lists agricultural and conservation exceptions.

Official state definition and reference: 18B.2(1)(a)[10]

Legal scope / use in M-2: Smart-planning definition with its own scope and exclusions.

Oxford English comparison / OED lookup 62: A process of growth, change, or building. (OED search; entry unverified).

Merriam-Webster comparison 63: An act of improving land or creating new structures and facilities. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Land use describes the intended purposes of land, including industrial activities. (Cornell Wex: land use).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Land-use planning concerns zoning and real-estate development, not a complete Iowa definition. (FindLaw: land use).

Land development regulations

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Government controls affecting property use, including zoning, subdivision, site-plan, floodplain, corridor-map, and stormwater ordinances or rules.

Official state definition and reference: 18B.2(1)(b)[11]

Legal scope / use in M-2: Smart-planning context.

Oxford English comparison / OED lookup 62: Rules controlling how land may be built on or used. (OED search; entry unverified).

Merriam-Webster comparison 63: Formal standards governing construction and use of property. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Zoning divides land into districts and regulates permitted uses. (Cornell Wex: zoning).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Land-use regulation encompasses zoning and control of real-estate development. (FindLaw: land use).

Air contaminant

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "dust, fume, mist, smoke, other particulate matter, gas, vapor (except water vapor), odorous substance, radioactive substance, or any combination thereof."

Official state definition and reference: 455B.131(1)[12]

Legal scope / use in M-2: Air-quality statute.

Oxford English comparison / OED lookup 62: A substance that makes the air impure or unsafe. (Oxford Learner's lookup).

Merriam-Webster comparison 63: Material present in air that causes contamination. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Air contaminant source

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Any private or public source emitting air contaminants, including industrial facilities and fuel-burning equipment; an organized fire department's apparatus is expressly excluded.

Official state definition and reference: 455B.131(2)[13]

Legal scope / use in M-2: Air-quality statute.

Oxford English comparison / OED lookup 62: The place or activity from which air pollution originates. (OED search; entry unverified).

Merriam-Webster comparison 63: An object or operation that releases substances into the air. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Air pollution

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Outdoor air contaminants present in an amount, condition, or duration that can harm life or property or unreasonably disrupt enjoyment of life or property.

Official state definition and reference: 455B.131(3)[14]

Legal scope / use in M-2: Air-quality statute.

Oxford English comparison / OED lookup 62: Harmful substances or energy in the air. (OED search; entry unverified).

Merriam-Webster comparison 63: Contamination of the atmosphere by pollutants. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Environmental-law overview discusses controls on pollution and air emissions. (Cornell Wex: environmental law).

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Emission

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "a release of one or more air contaminants into the outside atmosphere."

Official state definition and reference: 455B.131(6)[15]

Legal scope / use in M-2: Air-quality statute.

Oxford English comparison / OED lookup 62: The act of sending something outward, especially gas or radiation. (Oxford Learner's lookup).

Merriam-Webster comparison 63: A discharge or release, especially into the atmosphere. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Greenhouse gas

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): The statute lists carbon dioxide, methane, nitrous oxide, hydrofluorocarbons, perfluorocarbons, and sulfur hexafluoride.

Official state definition and reference: 455B.131(7)[16]

Legal scope / use in M-2: Air-quality statute.

Oxford English comparison / OED lookup 62: A gas that traps heat in Earth's atmosphere. (OED search; entry unverified).

Merriam-Webster comparison 63: A heat-retaining atmospheric gas that contributes to warming. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Major stationary source

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): An air-contaminant source whose actual or potential emissions meet a state-defined annual air-pollutant threshold, generally 100 tons per year, subject to the precise definition.

Official state definition and reference: 455B.131(8)[17]

Legal scope / use in M-2: NOT equivalent to the proposed local Major Industrial Facility category.

Oxford English comparison / OED lookup 62: A large fixed place where substances are discharged. (OED search; entry unverified).

Merriam-Webster comparison 63: A substantial fixed-location origin of emissions. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Ambient air

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Outdoor atmosphere accessible to the general public; this is an air-quality term, **not** ambient *sound*.

Official state definition and reference: IAC 567—22.1[18]

Legal scope / use in M-2: Administrative air-quality definition.

Oxford English comparison / OED lookup 62: The surrounding outdoor atmosphere. (OED search; entry unverified).

Merriam-Webster comparison 63: The air present in the surrounding environment. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Emergency generator

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Generator used solely to provide backup power during an unforeseeable interruption of utility electricity. The rule excludes peak-demand units, nonemergency industrial generation, and standby operation while utility electricity is available.

Official state definition and reference: IAC 567—22.1[19]

Legal scope / use in M-2: Air-quality classification; routine exercising/testing may be nonemergency for relevant permit rules.

Oxford English comparison / OED lookup 62: A machine that produces electricity when regular power fails. (OED search; entry unverified).

Merriam-Webster comparison 63: Electric power-generating equipment kept for unexpected outages. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Emission limitation / emission standard

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A state, local, or federal requirement continuously limiting pollutant emissions, including restrictions on opacity, fuel, equipment, operation, or maintenance.

Official state definition and reference: IAC 567—22.1[20]

Legal scope / use in M-2: Air-quality rules, not an independent City air permit.

Oxford English comparison / OED lookup 62: A limit on what a source may release. (OED search; entry unverified).

Merriam-Webster comparison 63: A specified restriction on pollutant discharge. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Hazardous condition

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): An actual, imminent, or probable hazardous-substance spill, leak, or release into land, state water, or the air that poses an immediate or potential public-health, safety, or environmental danger.

Official state definition and reference: 455B.381(4)[21]

Legal scope / use in M-2: Hazardous-condition response context.

Oxford English comparison / OED lookup 62: A situation involving potential danger or harm. (OED search; entry unverified).

Merriam-Webster comparison 63: A state of affairs presenting a risk of injury or damage. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Environmental-law overview discusses pollution prevention and remediation. (Cornell Wex: environmental law).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): The adjective *hazardous* describes exposure to risk; the Iowa release-response definition is narrower and controlling. (FindLaw: hazardous).

Hazardous substance — release response

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A substance or mixture posing danger to health or safety, including toxic, corrosive, flammable, irritating, or pressure-generating materials and certain federally designated wastes/materials.

Official state definition and reference: 455B.381(5)[22]

Legal scope / use in M-2: Broader hazardous-condition context.

Oxford English comparison / OED lookup 62: Material capable of causing harm if discharged. (OED search; entry unverified).

Merriam-Webster comparison 63: Dangerous matter requiring control when spilled or released. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Environmental-law overview describes federal hazardous-material cleanup regimes. (Cornell Wex: environmental law).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Related adjective denotes risk or danger, not the full state hazardous-substance definition. (FindLaw: hazardous).

Hazardous substance — waste management

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Uses the federal CERCLA definition (42 U.S.C. §9601) plus substances designated in 40 CFR §302.4.

Official state definition and reference: 455B.411(2)[23]

Legal scope / use in M-2: Different context-specific definition from §455B.381(5).

Oxford English comparison / OED lookup 62: Dangerous material that may harm people or surroundings. (OED search; entry unverified).

Merriam-Webster comparison 63: A substance that poses a threat to health or the environment. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Environmental-law overview identifies hazardous-waste law and cleanup regimes. (Cornell Wex: environmental law).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Related adjective denotes risk; federal/CERCLA cross-references control the legal term. (FindLaw: hazardous).

Hazardous waste

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Waste with quantity, concentration, degradation, leaching, or physical/chemical/infectious properties that can cause specified serious illness or substantial health/environmental hazards; statutory exclusions apply.

Official state definition and reference: 455B.411(3)[24]

Legal scope / use in M-2: Hazardous-waste management.

Oxford English comparison / OED lookup 62: Discarded material that is dangerous to health or nature. (OED search; entry unverified).

Merriam-Webster comparison 63: Waste whose properties create significant risk of harm. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Environmental-law overview identifies RCRA's hazardous-waste regulation. (Cornell Wex: environmental law).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Related adjective denotes risk; it is not the complete hazardous-waste definition. (FindLaw: hazardous).

Disposal (hazardous material)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Placing, dumping, spilling, discharging, leaking, or injecting hazardous wastes/substances onto land or into water so constituents can enter the environment.

Official state definition and reference: 455B.411(1)[25]

Legal scope / use in M-2: Hazardous-waste management.

Oxford English comparison / OED lookup 62: The act of getting rid of unwanted or harmful matter. (OED search; entry unverified).

Merriam-Webster comparison 63: The placement, discarding, or removal of waste material. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Industrial waste

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Liquid, gas, radioactive, or solid waste arising from industry, trade, manufacturing, business, or natural-resource development.

Official state definition and reference: 455B.171(10)[26]

Legal scope / use in M-2: Water-quality statute.

Oxford English comparison / OED lookup 62: Unwanted material produced by industry. (OED search; entry unverified).

Merriam-Webster comparison 63: Discarded by-products of manufacturing or other industrial work. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Aquifer

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A groundwater-bearing geologic formation that stores/transmits groundwater and yields usable water to a spring or well.

Official state definition and reference: 455B.261(1)[27]

Legal scope / use in M-2: Water-allocation statute.

Oxford English comparison / OED lookup 62: An underground layer of rock or sediment that holds water. (Oxford Learner's lookup).

Merriam-Webster comparison 63: A water-bearing geological formation from which groundwater can be drawn. (Merriam-Webster lookup).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Beneficial use

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Use of water for a useful purpose benefiting and controlled by the user without wasting or polluting it.

Official state definition and reference: 455B.261(4)[28]

Legal scope / use in M-2: Exact statutory term is 'beneficial use'.

Oxford English comparison / OED lookup 62: Use that produces a useful or favorable result. (OED search; entry unverified).

Merriam-Webster comparison 63: A practical application providing advantage or benefit. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: Verified subentry: The legal *use* entry includes beneficial use of water for reasonable purposes consistent with the public interest; compare Iowa's separate text. (FindLaw: use).

Depleting use

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Withdrawal, diversion, conveyance, storage, or other water use potentially harming other water users, natural resources, or public welfare if not controlled.

Official state definition and reference: 455B.261(5)[29]

Legal scope / use in M-2: Water-allocation statute.

Oxford English comparison / OED lookup 62: Using something in a way that reduces its supply. (OED search; entry unverified).

Merriam-Webster comparison 63: Consumption that diminishes an available resource. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Floodplains

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "the area adjoining a river or stream which has been or may be covered by flood water."

Official state definition and reference: 455B.261(8)[30]

Legal scope / use in M-2: Water-allocation/floodplain context.

Oxford English comparison / OED lookup 62: Low-lying land next to a watercourse that may flood. (OED search; entry unverified).

Merriam-Webster comparison 63: Level land adjoining a river that is subject to flooding. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Floodway

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A river or stream channel and necessary adjoining floodplain areas used to carry and discharge flood flow.

Official state definition and reference: 455B.261(9)[31]

Legal scope / use in M-2: Water-allocation/floodplain context.

Oxford English comparison / OED lookup 62: An area or channel that conveys floodwater. (OED search; entry unverified).

Merriam-Webster comparison 63: The part of a floodplain needed to carry flood flows. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Groundwater

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "that water occurring beneath the surface of the ground."

Official state definition and reference: 455B.261(10)[32]

Legal scope / use in M-2: Water-allocation statute.

Oxford English comparison / OED lookup 62: Water held below the ground surface. (Oxford Learner's lookup).

Merriam-Webster comparison 63: Water occupying pores and cracks in soil and rock underground. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Nonregulated use

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "any beneficial use of water by any person of less than twenty-five thousand gallons per day."

Official state definition and reference: 455B.261(11)[33]

Legal scope / use in M-2: Helps explain the draft's 25,000-gallon trigger; statutory exceptions and DNR rules still matter.

Oxford English comparison / OED lookup 62: A use not covered by a particular restriction. (OED search; entry unverified).

Merriam-Webster comparison 63: An activity outside the scope of a regulatory rule. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): The general property *use* entry does not establish Iowa's water threshold. (FindLaw: use).

Permit (water allocation)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A DNR authorization that governs withdrawal, diversion, or storage of water by quantity, location, time, and rate, or specified construction/work in a floodway or floodplain.

Official state definition and reference: 455B.261(12)[34]

Legal scope / use in M-2: Context-specific; not a general building or zoning permit.

Oxford English comparison / OED lookup 62: An official document granting permission to take or use water. (Oxford Learner's lookup).

Merriam-Webster comparison 63: A government authorization to withdraw or use water. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): A permit is written government authorization; this entry does not define Iowa water-allocation permits. (Cornell Wex: permit).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): A permit is written authorization issued by someone with authority; Iowa water requirements are separate. (FindLaw: permit).

Regulated use

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "any depleting use except a use specifically designated as a nonregulated use."

Official state definition and reference: 455B.261(14)[35]

Legal scope / use in M-2: Water-allocation statute.

Oxford English comparison / OED lookup 62: A use subject to official rules or controls. (OED search; entry unverified).

Merriam-Webster comparison 63: An activity governed by enforceable requirements. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): The general property *use* entry does not supply Iowa's regulated-water-use definition. (FindLaw: use).

Surface water

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): "the water occurring on the surface of the ground."

Official state definition and reference: 455B.261(15)[36]

Legal scope / use in M-2: Water-allocation statute.

Oxford English comparison / OED lookup 62: Water found on the land surface. (OED search; entry unverified).

Merriam-Webster comparison 63: Water present in rivers, lakes, and on the ground. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Waste (water allocation)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Includes water not put to full beneficial use, excessive losses transporting groundwater, and acts polluting a groundwater-bearing formation.

Official state definition and reference: 455B.261(16)[37]

Legal scope / use in M-2: Different from hazardous-waste definition.

Oxford English comparison / OED lookup 62: Use of water without useful result or beyond need. (OED search; entry unverified).

Merriam-Webster comparison 63: Unnecessary loss or inefficient use of water. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Watercourse

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A lake, river, creek, ditch, or similar channel or water body with definite banks and bed and evidence of water, subject to the statutory single-owner outlet-less pond/lake exception.

Official state definition and reference: 455B.261(17)[38]

Legal scope / use in M-2: Water-allocation statute.

Oxford English comparison / OED lookup 62: A stream, river, or channel carrying water. (OED search; entry unverified).

Merriam-Webster comparison 63: A natural or artificial channel through which water flows. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Stormwater

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Iowa's current water-pollution rule incorporates 40 CFR §122.26(b), covering rain/snowmelt runoff and other surface runoff and drainage. It no longer repeats the older separate state-rule text.

Official state definition and reference: IAC 567—60.1(4)(c); 40 CFR §122.26(b)[39]

Legal scope / use in M-2: Definition adopted by federal cross-reference in current Iowa administrative rule.

Oxford English comparison / OED lookup 62: Rainfall or melted snow that flows across surfaces. (OED search; entry unverified).

Merriam-Webster comparison 63: Water from precipitation and resulting surface runoff. (Merriam-Webster lookup).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Stormwater discharge associated with industrial activity

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Stormwater conveyed from areas associated with covered manufacturing, processing, material storage, and other enumerated industrial activities; federal rule contains detailed coverage and exemptions.

Official state definition and reference: IAC 567—60.1(4)(c); 40 CFR §122.26(b)(14)[40]

Legal scope / use in M-2: Applies in NPDES context, not to every land use called industrial in zoning.

Oxford English comparison / OED lookup 62: Runoff from industrial land or operations. (OED search; entry unverified).

Merriam-Webster comparison 63: Rainwater runoff leaving areas involved in industrial work. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Nuisance

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A condition injurious to health, indecent, unreasonably offensive to the senses, or obstructing property use so severely that it unreasonably interferes with comfortable enjoyment of life or property.

Official state definition and reference: 657.1(1)[41]

Legal scope / use in M-2: Legal nuisance standard; not itself a numerical zoning noise limit.

Oxford English comparison / OED lookup 62: Something annoying or troublesome; also conduct a court can restrain. (Oxford Learner's lookup).

Merriam-Webster comparison 63: An annoyance or a condition that can interfere with others' rights. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Direct Wex entry: Private nuisance concerns substantial, unreasonable interference with land use or enjoyment; public nuisance affects shared public rights. (Cornell Wex: nuisance).

FindLaw Legal Dictionary (free) 64: Direct legal entry: An unreasonable interference with rights or the use and enjoyment of property may be a nuisance. (FindLaw: nuisance).

Building regulations

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Laws, ordinances, codes, rules, or comparable governmental requirements for construction, repair, alteration, conversion, equipment, and use of buildings; the statutory definition expressly excludes zoning and subdivision rules.

Official state definition and reference: 103A.3(3)[42]

Legal scope / use in M-2: Building-code definition; confirms zoning is legally distinct.

Oxford English comparison / OED lookup 62: Rules for constructing and using buildings. (OED search; entry unverified).

Merriam-Webster comparison 63: Codes governing building work, equipment, and safety. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Performance objective

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Design and engineering criteria expressed without specifying the required construction method.

Official state definition and reference: 103A.3(20)[43]

Legal scope / use in M-2: Building-code context; useful contrast with prescriptive rules.

Oxford English comparison / OED lookup 62: A result or goal that something is expected to achieve. (OED search; entry unverified).

Merriam-Webster comparison 63: A measurable outcome or target for performance. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Aquifer storage and recovery

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Injection and storage of treated water in an aquifer through a permitted well when supply is available, followed by withdrawal through the same well when needed.

Official state definition and reference: 455B.261(2)[44]

Legal scope / use in M-2: Water-allocation definition; not synonymous with industrial recirculating cooling.

Oxford English comparison / OED lookup 62: Storing water underground and later withdrawing it. (OED search; entry unverified).

Merriam-Webster comparison 63: Using a geological water reservoir to store and retrieve water. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Basin (groundwater)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A defined subsurface water-bearing reservoir whose boundaries can be reasonably identified.

Official state definition and reference: 455B.261(3)[45]

Legal scope / use in M-2: Water-allocation definition.

Oxford English comparison / OED lookup 62: An area or geological hollow holding underground water. (OED search; entry unverified).

Merriam-Webster comparison 63: A depression or geological region containing groundwater. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Diffused waters

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Precipitation and snowmelt water that is not part of a watercourse or basin, including capillary soil water.

Official state definition and reference: 455B.261(6)[46]

Legal scope / use in M-2: State water-law context.

Oxford English comparison / OED lookup 62: Water spread across land instead of flowing in a channel. (OED search; entry unverified).

Merriam-Webster comparison 63: Runoff or seepage dispersed over a surface. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Permittee (water allocation)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A person holding authorization to divert, store, withdraw, and beneficially use an allotted quantity of water, or authorized to conduct certain floodway/floodplain activities.

Official state definition and reference: 455B.261(13)[47]

Legal scope / use in M-2: Water-allocation definition, distinct from local zoning applicants.

Oxford English comparison / OED lookup 62: A person or business holding an official permit. (OED search; entry unverified).

Merriam-Webster comparison 63: The recipient or holder of an authorization. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Permit entry explains the governmental authorization, not the exact Iowa water-use holder definition. (Cornell Wex: permit).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): Permit entry describes the authorization, not a full statutory definition of permit holder. (FindLaw: permit).

Closure (sanitary disposal project)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Actions preventing, mitigating, or minimizing threats posed by a closed sanitary landfill, including appropriate cover, grading, seeding, monitoring, and drainage measures.

Official state definition and reference: 455B.301(6)[48]

Legal scope / use in M-2: Sanitary waste facility context only; not a data-center abandonment rule.

Oxford English comparison / OED lookup 62: The act of shutting a facility or operation. (OED search; entry unverified).

Merriam-Webster comparison 63: The process of ending a disposal site and securing it. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Closure plan (sanitary disposal project)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): An operator's methods and schedule for stopping disposal operations, preparing a sanitary disposal site for long-term care, and making it suitable for other uses.

Official state definition and reference: 455B.301(7)[49]

Legal scope / use in M-2: Not a statutory requirement for all M-2 industrial facilities.

Oxford English comparison / OED lookup 62: A proposal for safely stopping an operation. (OED search; entry unverified).

Merriam-Webster comparison 63: A written scheme for shutting and stabilizing a disposal facility. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Financial assurance instrument (sanitary disposal project)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A submitted financial instrument showing capacity for necessary remedial responses, lawful closure, postclosure care, and correction. Allowed mechanisms can include trust funds, bonds, insurance, financial tests, guarantees, dedicated funds, or letters of credit.

Official state definition and reference: 455B.301(9)[50]

Legal scope / use in M-2: Important precedent, but applies to sanitary disposal projects, not automatically to data-center decommissioning.

Oxford English comparison / OED lookup 62: A financial arrangement intended to provide security for an obligation. (OED search; entry unverified).

Merriam-Webster comparison 63: A bond, policy, or similar arrangement giving evidence of funds or security. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Solid waste

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Garbage, refuse, rubbish, and similar discarded solid or semisolid material from commercial, industrial, domestic, and other activities, subject to express statutory exclusions.

Official state definition and reference: 455B.301(29)[51]

Legal scope / use in M-2: Relevant to lawful site restoration and discarded equipment handling.

Oxford English comparison / OED lookup 62: Discarded material in solid or semisolid form. (OED search; entry unverified).

Merriam-Webster comparison 63: Unwanted solid matter from households, industry, or commerce. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Environmental-law overview identifies RCRA's solid-waste regime. (Cornell Wex: environmental law).

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Cleanup (hazardous substance)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Actions needed to contain, collect, control, identify, analyze, treat, disperse, remove, or dispose of a hazardous substance.

Official state definition and reference: 455B.381(1)[52]

Legal scope / use in M-2: Hazardous-conditions context; pertinent to spills and decommissioning.

Oxford English comparison / OED lookup 62: Removal of dirt, pollution, or unwanted matter. (OED search; entry unverified).

Merriam-Webster comparison 63: An operation to remove or control harmful material. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Environmental-law overview discusses CERCLA site cleanup. (Cornell Wex: environmental law).

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Best management practice (BMP)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A practice or combination chosen after assessment, alternative review, and appropriate participation as the most effective practicable way to reduce nonpoint-source pollution in keeping with water-quality goals.

Official state definition and reference: IAC 567—60.1(2)[53]

Legal scope / use in M-2: State wastewater-rule definition; useful in stormwater plans.

Oxford English comparison / OED lookup 62: An accepted effective way of carrying out work. (OED search; entry unverified).

Merriam-Webster comparison 63: A practical technique recognized as effective for a specified purpose. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

Construction permit (wastewater)

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): A written DNR approval to construct a wastewater disposal system or a portion of it in accordance with approved plans and specifications.

Official state definition and reference: IAC 567—60.1(2)[54]

Legal scope / use in M-2: Different from a Cascade building or zoning permit.

Oxford English comparison / OED lookup 62: Official permission to build a wastewater facility. (OED search; entry unverified).

Merriam-Webster comparison 63: An authorization allowing specified sewage-treatment construction. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: Related Wex article (not this term): Permit is government-issued written permission, not the Iowa wastewater permit criteria. (Cornell Wex: permit).

FindLaw Legal Dictionary (free) 64: Related legal entry (not this term): General permit means an official written authorization, not specific DNR approval criteria. (FindLaw: permit).

Fugitive dust

State definition or statutory meaning (short quotations where marked; longer definitions accurately condensed): Airborne solid particles emitted from a source other than a stack or flue.

Official state definition and reference: IAC 567—22.1[55]

Legal scope / use in M-2: Air-quality source term potentially relevant to construction and operations.

Oxford English comparison / OED lookup 62: Airborne dust that escapes from an activity or location. (OED search; entry unverified).

Merriam-Webster comparison 63: Particles dispersed into the air from sources other than a defined outlet. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free) 64: — No direct entry verified.

FindLaw Legal Dictionary (free) 64: — No direct entry verified.

B. State law assigns meaning or legal authority, but does not supply one general zoning definition

Special exception

What Iowa law provides: Board of Adjustment hears and decides those special exceptions the municipal ordinance assigns to it; the statute does not define every permissible class of special exception.

Official reference: Iowa Code §414.12(2) [56]

Oxford English comparison / OED lookup: A case treated differently under specified rules. (OED search; entry unverified).

Merriam-Webster comparison: An authorized departure from a general condition in a particular case. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Zoning overview discusses land-use regulation and exceptions; it is not an exact special-exception definition. (Cornell Wex: zoning).

FindLaw Legal Dictionary (free): Direct legal entry: A special exception is a property use permitted under specified conditions in an ordinance. (FindLaw: special exception).

Variance

What Iowa law provides: The Board of Adjustment may grant qualifying hardship-based variances, and §414.12(4) separately governs area, dimensional, and numerical variances involving practical difficulties. This is a statutory power and criteria, not a blanket entitlement.

Official reference: Iowa Code §414.12(3)–(4) [57]

Oxford English comparison / OED lookup: A difference from an expected amount or rule. (Oxford Learner's lookup).

Merriam-Webster comparison: A difference, or official permission to act contrary to a usual rule. (Merriam-Webster lookup).

Cornell Law Wex (free): Direct Wex entry: A variance is an officially granted exception to a zoning restriction. (Cornell Wex: variance).

FindLaw Legal Dictionary (free): Direct legal entry: A variance can authorize departure from ordinary zoning restrictions, subject to applicable law. (FindLaw: variance).

Public welfare / general welfare

What Iowa law provides: These are statutory purposes and considerations in city home-rule and zoning law, not one exclusive across-the-board Iowa zoning definition. Do not invent a single binding dictionary meaning.

Official reference: Iowa Code §364.1, §414.1, §414.3 [58]

Oxford English comparison / OED lookup: The health, security, and well-being of the community. (Oxford Learner's lookup).

Merriam-Webster comparison: The collective health, comfort, and interests of the public. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Zoning overview discusses protective objectives of land-use regulation, not an Iowa statutory definition of welfare. (Cornell Wex: zoning).

FindLaw Legal Dictionary (free): Related legal entry (not this term): Zoning addresses local land-use regulation, not a standalone public-welfare test. (FindLaw: zoning).

Zoning uniformity

What Iowa law provides: Iowa requires zoning regulations to be uniform for each class or kind of buildings throughout a district, while allowing different districts. Confirm classification and board process with City Attorney.

Official reference: Iowa Code §414.2 [59]

Oxford English comparison / OED lookup: Consistent application of district land-use requirements. (OED search; entry unverified).

Merriam-Webster comparison: Equal treatment of comparable uses within a zoning classification. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Zoning defines districts and controls land uses; this article does not define Iowa's §414.2 uniformity test. (Cornell Wex: zoning).

FindLaw Legal Dictionary (free): Related legal entry (not this term): Zoning concerns district regulation; §414.2—not this entry—sets Iowa uniformity. (FindLaw: zoning).

Stormwater controls

What Iowa law provides: State rules incorporate the federal stormwater definitions. Separately, Iowa Code §364.3 limits certain municipal post-construction runoff restrictions; review before implementing new engineering requirements.

Official reference: IAC 567—60.1(4)(c), Iowa Code §364.3 [60]

Oxford English comparison / OED lookup: Measures used to contain or direct rainwater runoff. (OED search; entry unverified).

Merriam-Webster comparison: Methods and structures used to manage precipitation runoff. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

C. Proposed local Cascade definitions (not definitions created by statewide Iowa zoning law)

These definitions are proposed additions or explanations for Cascade §165.41. Their status is **LOCAL DRAFT**, even when a similar term occurs elsewhere in Iowa law. Existing Cascade §165.41

definitions for building/structure, lot, dwelling, and accessory use should be checked for overlap before adoption.

Data Center or High-Density Computing Facility

Draft definition: A building, structure, or portion thereof principally used for networked servers, electronic data processing, digital storage, artificial-intelligence, cloud, colocation, scientific, or cryptocurrency computing. Incidental computer rooms and telecommunications equipment subordinate to another principal use are excluded.

Drafting note: Keep existing Cascade draft wording; compare state sales-tax definition, without importing tax-exemption eligibility. [61]

Oxford English comparison / OED lookup: A place with extensive computer equipment for processing information. (Oxford Learner's lookup).

Merriam-Webster comparison: A facility housing computer systems used for storing or processing data. (Merriam-Webster lookup).

Cornell Law Wex (free): Related Wex article (not this term): Land-use overview identifies industrial land-use purposes, not data-center facilities. (Cornell Wex: land use).

FindLaw Legal Dictionary (free): Related legal entry (not this term): Land-use entry describes zoning and development, not a data-center headword. (FindLaw: land use).

Major Industrial Facility

Draft definition: An M-2 use exceeding any one threshold in proposed §165.11(D)(8): 5 MW coincident demand, 25,000 gallons in any 24 hours, 2 MW aggregate stationary generation, or 5 MWh storage. Also includes a modification that crosses a threshold.

Drafting note: A local zoning trigger, **not** Iowa's 'major stationary source' air-permit classification. [61]

Oxford English comparison / OED lookup: A large workplace or plant used for industrial operations. (OED search; entry unverified).

Merriam-Webster comparison: A substantial industrial site or collection of buildings and equipment. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Land-use overview includes industrial uses; no exact major-facility definition. (Cornell Wex: land use).

FindLaw Legal Dictionary (free): Related legal entry (not this term): Land-use entry gives general zoning context, not an industrial-size definition. (FindLaw: land use).

Material Expansion

Draft definition: A modification increasing an approved maximum by 20 percent or more for electrical demand, water demand, stationary generation, energy storage, exterior mechanical capacity, or developed building area, or crossing a Major Industrial Facility threshold for the first time.

Drafting note: Cross-reference §165.11(G)(18); final denominator and baseline should be approved in permit record. [61]

Oxford English comparison / OED lookup: An important enlargement in size or scope. (OED search; entry unverified).

Merriam-Webster comparison: A significant increase in an undertaking's capacity or extent. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Land-use overview addresses regulated uses; no numerical expansion threshold. (Cornell Wex: land use).

FindLaw Legal Dictionary (free): Related legal entry (not this term): General land-use context only; it does not establish the proposal's 20% test. (FindLaw: land use).

Sensitive Receptor

Draft definition: An occupied dwelling, school, licensed child-care facility, hospital, nursing facility, place of worship, public library, public park facility, or comparable occupied use requiring protection from continuous industrial noise.

Drafting note: Retain existing draft; specify measurement points objectively in §165.11(G)(4). [61]

Oxford English comparison / OED lookup: A person or place more likely to be affected by exposure. (OED search; entry unverified).

Merriam-Webster comparison: A location or recipient especially susceptible to environmental effects. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Ambient Noise / Baseline Sound

Draft definition: Sound at a specified receiving location from existing natural and human-made sources before the proposed facility's contribution; measured over representative day/night periods and operating conditions.

Drafting note: Local acoustical definition; do not confuse with Iowa's 'ambient air'. [61]

Oxford English comparison / OED lookup: Sound already present in surrounding conditions. (OED search; entry unverified).

Merriam-Webster comparison: The existing sound level before an added source is counted. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Facility-Attributable Noise

Draft definition: The sound contribution from the regulated M-2 operation at the applicable receptor, including operational mechanical equipment and other covered sources, calculated or measured using documented acoustical methods.

Drafting note: Specify treatment of background subtraction and unrelated noise in the adopted measurement protocol. [61]

Oxford English comparison / OED lookup: Sound that can be traced to an identified site. (OED search; entry unverified).

Merriam-Webster comparison: Noise originating from a particular operation or facility. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

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dBA

Draft definition: A-weighted decibels of sound pressure, measured with calibrated equipment using the applicable professional noise measurement method.

Drafting note: Technical term; not a general 2026 Iowa zoning-law definition verified in the reviewed sources. [61]

Oxford English comparison / OED lookup: A technical measure of sound weighted toward human hearing. (OED search; entry unverified).

Merriam-Webster comparison: Decibels measured using A-frequency weighting. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

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dBC

Draft definition: C-weighted decibels of sound pressure, which place greater relative weight on low-frequency sound than A-weighting.

Drafting note: Technical term; useful for low-frequency industrial noise. [61]

Oxford English comparison / OED lookup: A technical measure that retains more low-frequency sound. (OED search; entry unverified).

Merriam-Webster comparison: Decibels measured using C-frequency weighting. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Hourly Average Sound Level (Leq,1h)

Draft definition: The energy-equivalent continuous sound-pressure level for the full 60-minute measurement interval, using the stated frequency weighting and measurement procedure.

Drafting note: The ordinance's 'hourly average' should be made a measurable quantity, not an arithmetic average of decibel numbers. [61]

Oxford English comparison / OED lookup: An averaged sound measure over a one-hour period. (OED search; entry unverified).

Merriam-Webster comparison: An equivalent energy-based acoustic level over sixty minutes. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Prominent Tone / Tonal Noise

Draft definition: An identifiable recurring or steady audible frequency component distinguishable from neighboring sound bands when evaluated under the ordinance's specified professional acoustical method.

Drafting note: The proposed 5 dB adjustment needs an objective detection method. [61]

Oxford English comparison / OED lookup: A noticeable sound of identifiable pitch. (OED search; entry unverified).

Merriam-Webster comparison: A sound characterized by a clear frequency or whine. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Acoustic Study

Draft definition: A qualified professional's documented baseline survey, maximum-design-operation model, receptor analysis, assumptions, equipment schedule, and verification protocol.

Drafting note: Tie to §165.11(G)(5). [61]

Oxford English comparison / OED lookup: An investigation of sound and its behavior. (OED search; entry unverified).

Merriam-Webster comparison: A professional examination of noise levels and propagation. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Maximum Anticipated Coincident Electrical Demand

Draft definition: The maximum expected simultaneous demand of the complete site, in megawatts, under reasonably foreseeable operating conditions, without treating separately rated equipment nameplate capacity as coincident demand.

Drafting note: Defined for local 5 MW trigger; utility confirmation required. [61]

Oxford English comparison / OED lookup: The highest expected simultaneous need for electrical power. (OED search; entry unverified).

Merriam-Webster comparison: The peak forecasted combined electric load at a site. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Aggregate Stationary Generation Capacity

Draft definition: The sum of rated electrical outputs of all stationary generators covered by the section, in megawatts, excluding fire pumps only where expressly provided.

Drafting note: Measure rated electrical rather than thermal capacity; address unit conversions. [61]

Oxford English comparison / OED lookup: The total power-making ability of fixed generators. (OED search; entry unverified).

Merriam-Webster comparison: Combined nameplate electrical output of stationary generating units. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Aggregate Electrical-Energy-Storage Capacity

Draft definition: The summed rated stored electrical energy of covered stationary storage systems, in megawatt-hours, using documented nameplate energy ratings.

Drafting note: Measure MWh of energy, not MW of output power. [61]

Oxford English comparison / OED lookup: The total amount of electricity a storage system can hold. (OED search; entry unverified).

Merriam-Webster comparison: Combined stored energy rating of batteries or other storage units. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Exterior Mechanical Equipment

Draft definition: Permanently located outdoor fans, compressors, cooling equipment, generators, transformers, heat-rejection systems, and comparable mechanical installations serving an M-2 principal use.

Drafting note: Clarifies setbacks and screening; exclude ordinary indoor office equipment. [61]

Oxford English comparison / OED lookup: Machinery installed outdoors rather than inside a building. (OED search; entry unverified).

Merriam-Webster comparison: Fixed outdoor mechanical devices such as fans or compressors. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Property Boundary / Lot Line

Draft definition: The legally established boundary of the parcel under review as supported by a recorded plat, survey, deed, or other legally controlling boundary record.

Drafting note: Do not confuse the boundary of a residential zoning district with the boundary of an individual residential parcel. [61]

Oxford English comparison / OED lookup: The line marking the edge of a landholding. (OED search; entry unverified).

Merriam-Webster comparison: The legally identified dividing line between parcels. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Real-property overview concerns interests in land, not the precise surveyed boundary. (Cornell Wex: real property).

FindLaw Legal Dictionary (free): Related legal entry (not this term): Property entry addresses ownership interests, not survey-grade parcel boundaries. (FindLaw: property).

Residential Zoning District Boundary

Draft definition: The official delineation between an M-2 parcel or district and land designated residential by the City's controlling zoning map.

Drafting note: The current setbacks are triggered by zoning-district adjacency, not mere proximity to a home. [61]

Oxford English comparison / OED lookup: The line separating residentially zoned land from other zones. (OED search; entry unverified).

Merriam-Webster comparison: The legally mapped edge of a residential land-use district. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Zoning explains geographically distinct regulated land-use districts. (Cornell Wex: zoning).

FindLaw Legal Dictionary (free): Related legal entry (not this term): Zoning is local regulation of land uses through geographically defined zones. (FindLaw: zoning).

Sensitive-Receptor Measurement Location

Draft definition: The specified exterior wall, occupied outdoor-use area, or other objectively identified receiving point at a sensitive receptor, documented on an approved site/acoustic plan.

Drafting note: Clarify sampling height, distance from reflecting surfaces, and access. [61]

Oxford English comparison / OED lookup: The point where environmental exposure is assessed. (OED search; entry unverified).

Merriam-Webster comparison: A defined sampling position at a protected receiving site. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Once-Through Cooling

Draft definition: A process in which municipal potable water passes through a cooling system once and is discharged rather than being recirculated for heat rejection.

Drafting note: Local definition only; retain current prohibition for new Major Industrial Facilities. [61]

Oxford English comparison / OED lookup: Cooling with water that passes through only once. (OED search; entry unverified).

Merriam-Webster comparison: A cooling process discharging water after a single pass. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): Related legal entry (not this term): The legal 'use' headword concerns use of property/resources, not a cooling technology definition. (FindLaw: use).

Closed-Loop Cooling

Draft definition: A recirculating coolant system intended to keep working fluid contained, subject to any limited makeup or process losses specifically disclosed.

Drafting note: Distinguish from systems with significant cooling-tower evaporation. [61]

Oxford English comparison / OED lookup: Cooling fluid reused within a closed circulating system. (OED search; entry unverified).

Merriam-Webster comparison: Recirculating cooling that keeps its working fluid in a circuit. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): Related legal entry (not this term): The legal 'use' headword is not a cooling-system standard. (FindLaw: use).

Emergency Response Plan

Draft definition: A written, site-specific plan documenting access, contacts, utility isolation, fuel, chemicals, battery systems, suppression, evacuation, spills, and coordination with first responders.

Drafting note: Must be consistent with adopted fire and emergency-response requirements. [61]

Oxford English comparison / OED lookup: A set of actions prepared for dangerous events. (OED search; entry unverified).

Merriam-Webster comparison: A written procedure for handling incidents and protecting people. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): Related legal entry (not this term): Permit definition concerns authorization, not emergency planning; included only for regulatory context. (FindLaw: permit).

Decommissioning

Draft definition: The safe disconnection, dismantling, lawful removal, cleanup, and site restoration work required at the end of a covered facility's life.

Drafting note: Define what is required in the approved plan and cost estimate. [61]

Oxford English comparison / OED lookup: Officially ending use of equipment or a facility and making it safe. (Oxford Learner's lookup).

Merriam-Webster comparison: Removing a facility or equipment from service. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Abandonment

Draft definition: Continuous cessation of a facility's principal approved industrial operation for the period specified in §165.11(G)(17), subject to its listed reasonable exceptions.

Drafting note: Existing proposed period: 12 months; do not treat temporary reconstruction as automatic abandonment. [61]

Oxford English comparison / OED lookup: Leaving something behind or giving it up. (Oxford Learner's lookup).

Merriam-Webster comparison: Relinquishing property or an activity without intent to reclaim it. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Direct Wex entry: Abandonment generally requires intentional relinquishment; property-law consequences depend on context. (Cornell Wex: abandonment).

FindLaw Legal Dictionary (free): Direct legal entry: Abandonment includes relinquishing property or a right; legal applications vary. (FindLaw: abandonment).

Financial Assurance

Draft definition: A legally authorized and enforceable instrument providing funds for documented decommissioning and restoration obligations.

Drafting note: State parallel: Iowa Code §455B.301(9) defines a financial assurance *instrument* for sanitary disposal; that definition does not by itself empower a city to demand security for an M-2 data center. City Attorney must approve authority, amount, and eligible instruments. [61]

Oxford English comparison / OED lookup: A promise or arrangement giving confidence money will be available. (OED search; entry unverified).

Merriam-Webster comparison: A financial guarantee or security supporting an obligation. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Property interests are discussed, but this is not a definition of a decommissioning bond. (Cornell Wex: real property).

FindLaw Legal Dictionary (free): Related legal entry (not this term): Property entry concerns ownership interests, not security for decommissioning obligations. (FindLaw: property).

Independent Qualified Professional

Draft definition: An appropriately licensed or credentialed expert with relevant technical competence and no financial or managerial interest that would compromise independent evaluation.

Drafting note: Technical reviewer designation, not an assertion of an Iowa statutory license category. [61]

Oxford English comparison / OED lookup: A trained specialist free of controlling outside interests. (OED search; entry unverified).

Merriam-Webster comparison: A competent expert able to exercise judgment without conflicting influence. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): — No direct entry verified.

FindLaw Legal Dictionary (free): — No direct entry verified.

Material Modification (for monitoring)

Draft definition: A change in equipment, site layout, generation operation, or other covered operation reasonably likely to change the regulated environmental or infrastructure impact.

Drafting note: Use to trigger acoustic re-evaluation without creating a second inconsistent expansion test. [61]

Oxford English comparison / OED lookup: A meaningful change to an existing thing or process. (OED search; entry unverified).

Merriam-Webster comparison: An alteration substantial enough to affect the relevant outcome. (Merriam-Webster search; entry unverified).

Cornell Law Wex (free): Related Wex article (not this term): Zoning describes land-use regulation; no exact material-change test. (Cornell Wex: zoning).

FindLaw Legal Dictionary (free): Related legal entry (not this term): General land-use context only; it does not establish a monitoring trigger. (FindLaw: land use).

D. Drafting rules and cross-checks

1. **Do not mislabel a paraphrase as the full verbatim statute.** The cited source contains the actual enacted text. Keep any adopted cross-reference tied to the specific controlling provision.

2. **Preserve existing City definitions unless deliberately amended.** The project has a transcription of Cascade's base §165.41, but the City Attorney should compare all later amendments and the certified current text.
3. **Avoid accidentally importing unrelated state programs.** For example, a 'major stationary source' in §455B.131 is an air-permitting term; a 'Major Industrial Facility' in the proposal is a local land-use threshold. Likewise, 'ambient air' is not ambient noise.
4. **Do not use pending bills as enacted definitions.** A proposed 2026 bill's wording about battery energy storage is not automatically Iowa law.
5. **Specify noise measurement requirements.** Final §165.11(G)(4) should identify Leq,1h, background subtraction, weighting, representative conditions, calibration, receptor positions, tonal detection, and limits on unrelated sound contributions. The 65/75 and 55/65/50/60 numerical proposals have **not** been changed in this update.
6. **Use a neutral physical-impact framework.** The 5 MW, 25,000-gallon, 2 MW generation, and 5 MWh storage triggers remain proposed policy choices, not state-law zoning thresholds. The 25,000-gallon figure aligns with a water-law term but does not mean every such site automatically needs the same Iowa DNR permit.
7. **Obtain City Attorney review.** Determine which definitions belong in ordinance §165.41, which belong in permit applications, and which require a separate fee, fire, environmental, or infrastructure instrument.

Dictionary publications and source verification

- **Source directory:** New York Law School Mendik Library, Free Online Legal Dictionaries and Glossaries (updated August 24, 2026). It distinguishes ordinary English dictionaries from specialized legal dictionaries and advises checking dates, sources, and links.
- **Cornell Wex:** Legal Information Institute, Cornell Law School. Free U.S. legal dictionary/ encyclopedia. Examples of verified **direct** entries in this table: variance, nuisance, and abandonment. Entries linked as **related** are context only, never claimed to define the entire composite ordinance term.
- **FindLaw Legal Dictionary:** FindLaw, a free legal-term reference. Examples of verified entries: special exception, variance, nuisance, owner, and permit. **Source provenance:** Many FindLaw entries expressly credit the licensed *Merriam-Webster's Dictionary of Law* (1996), distinct from the general Merriam-Webster column.
- **Oxford English Dictionary (OED):** OED online, with separately identified accessible Oxford Advanced Learner's Dictionary lookups. The full OED entries remain unverified and are not quoted.
- **Merriam-Webster general dictionary:** Merriam-Webster.com; an entry labeled **search, unverified** is not assumed to exist as a single dictionary headword.
- **Verification boundary:** No entry is invented for compound technical terms such as **Maximum Anticipated Coincident Electrical Demand**. A legal dictionary's *construction* headword, for example, may concern **interpreting statutes**, not the building-code construction term under Iowa Code §103A.3. Likewise, Wex “waste” refers to a doctrine about property damage, not Iowa's industrial/water waste definition. State definitions remain in their original statutory columns, unchanged.
- **Quotation and copyright:** All short explanations in comparison cells are **independently written summaries**, not reproductions of proprietary entries. Follow the direct source link for authoritative original legal-dictionary wording.

Chicago-style numbered source notes

Superscript numbers in the table correspond to these notes. **Every state-law row has an individual citation;** local-draft rows share note 61, and the dictionary headings use notes 1–3. Dictionary comparisons are secondary interpretive commentary. The state statute or agency rule always controls.

Primary official references

- Iowa Code 2026 Chapter 414 — municipal zoning
- Iowa Code 2026 §423.3(95)(f) — state data-center tax definitions
- Iowa Code 2026 §103A.3 — building code definitions
- Iowa Code 2026 §18B.2 — development and land development regulations
- Iowa Code 2026 §§455B.131, 455B.171, 455B.261, 455B.381, 455B.411 — environment and water
- Iowa Code 2026 §657.1 — nuisance
- IAC 567—22.1 — generators and air-quality definitions
- IAC 567—60.1 — current stormwater cross-references

1. Iowa General Assembly / Iowa Administrative Code, definition or term "Data center," 423.3(95)(f)(1), https://www.legis.iowa.gov/docs/code/2026/423.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩
2. Iowa General Assembly / Iowa Administrative Code, definition or term "Data center business," 423.3(95)(f)(2), https://www.legis.iowa.gov/docs/code/2026/423.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩
3. Iowa General Assembly / Iowa Administrative Code, definition or term "Site preparation activities," 423.3(95)(f)(3), https://www.legis.iowa.gov/docs/code/2026/423.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩
4. Iowa General Assembly / Iowa Administrative Code, definition or term "Building," 103A.3(2), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩
5. Iowa General Assembly / Iowa Administrative Code, definition or term "Construction," 103A.3(5), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩
6. Iowa General Assembly / Iowa Administrative Code, definition or term "Equipment," 103A.3(9), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩
7. Iowa General Assembly / Iowa Administrative Code, definition or term "Owner," 103A.3(19), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩
8. Iowa General Assembly / Iowa Administrative Code, definition or term "Structure," 103A.3(24), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

9. Iowa General Assembly / Iowa Administrative Code, definition or term "Sustainable design," 103A.3(25), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

10. Iowa General Assembly / Iowa Administrative Code, definition or term "Development," 18B.2(1)(a), https://www.legis.iowa.gov/docs/code/2026/18B.2.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

11. Iowa General Assembly / Iowa Administrative Code, definition or term "Land development regulations," 18B.2(1)(b), https://www.legis.iowa.gov/docs/code/2026/18B.2.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

12. Iowa General Assembly / Iowa Administrative Code, definition or term "Air contaminant," 455B.131(1), https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

13. Iowa General Assembly / Iowa Administrative Code, definition or term "Air contaminant source," 455B.131(2), https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

14. Iowa General Assembly / Iowa Administrative Code, definition or term "Air pollution," 455B.131(3), https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

15. Iowa General Assembly / Iowa Administrative Code, definition or term "Emission," 455B.131(6), https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

16. Iowa General Assembly / Iowa Administrative Code, definition or term "Greenhouse gas," 455B.131(7), https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

17. Iowa General Assembly / Iowa Administrative Code, definition or term "Major stationary source," 455B.131(8), https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

18. Iowa General Assembly / Iowa Administrative Code, definition or term "Ambient air," IAC 567—22.1, https://www.legis.iowa.gov/docs/iac/rule/02-25-2026.567.22.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

19. Iowa General Assembly / Iowa Administrative Code, definition or term "Emergency generator," IAC 567—22.1, https://www.legis.iowa.gov/docs/iac/rule/02-25-2026.567.22.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

20. Iowa General Assembly / Iowa Administrative Code, definition or term "Emission limitation / emission standard," IAC 567—22.1, https://www.legis.iowa.gov/docs/iac/rule/02-25-2026.567.22.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

21. Iowa General Assembly / Iowa Administrative Code, definition or term "Hazardous condition," 455B.381(4), https://www.legis.iowa.gov/docs/code/2026/455B.381.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

22. Iowa General Assembly / Iowa Administrative Code, definition or term "Hazardous substance — release response," 455B.381(5), https://www.legis.iowa.gov/docs/code/2026/455B.381.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

23. Iowa General Assembly / Iowa Administrative Code, definition or term "Hazardous substance — waste management," 455B.411(2), https://www.legis.iowa.gov/docs/code/2026/455B.411.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

24. Iowa General Assembly / Iowa Administrative Code, definition or term "Hazardous waste," 455B.411(3), https://www.legis.iowa.gov/docs/code/2026/455B.411.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

25. Iowa General Assembly / Iowa Administrative Code, definition or term "Disposal (hazardous material)," 455B.411(1), https://www.legis.iowa.gov/docs/code/2026/455B.411.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

26. Iowa General Assembly / Iowa Administrative Code, definition or term "Industrial waste," 455B.171(10), https://www.legis.iowa.gov/docs/code/2026/455B.171.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

27. Iowa General Assembly / Iowa Administrative Code, definition or term "Aquifer," 455B.261(1), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

28. Iowa General Assembly / Iowa Administrative Code, definition or term "Beneficial use," 455B.261(4), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

29. Iowa General Assembly / Iowa Administrative Code, definition or term "Depleting use," 455B.261(5), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

30. Iowa General Assembly / Iowa Administrative Code, definition or term "Floodplains," 455B.261(8), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

31. Iowa General Assembly / Iowa Administrative Code, definition or term "Floodway," 455B.261(9), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

32. Iowa General Assembly / Iowa Administrative Code, definition or term "Groundwater," 455B.261(10), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

33. Iowa General Assembly / Iowa Administrative Code, definition or term "Nonregulated use," 455B.261(11), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

34. Iowa General Assembly / Iowa Administrative Code, definition or term "Permit (water allocation)," 455B.261(12), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

35. Iowa General Assembly / Iowa Administrative Code, definition or term "Regulated use," 455B.261(14), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

36. Iowa General Assembly / Iowa Administrative Code, definition or term "Surface water," 455B.261(15), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

37. Iowa General Assembly / Iowa Administrative Code, definition or term "Waste (water allocation)," 455B.261(16), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

38. Iowa General Assembly / Iowa Administrative Code, definition or term "Watercourse," 455B.261(17), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

39. Iowa General Assembly / Iowa Administrative Code, definition or term "Stormwater," IAC 567—60.1(4)(c); 40 CFR §122.26(b), https://www.legis.iowa.gov/docs/iac/rule/567.60.1.pdf. **Scope:** See the source provision for

qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

40. Iowa General Assembly / Iowa Administrative Code, definition or term "Stormwater discharge associated with industrial activity," IAC 567—60.1(4)(c); 40 CFR §122.26(b)(14), https://www.legis.iowa.gov/docs/iac/rule/567.60.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

41. Iowa General Assembly / Iowa Administrative Code, definition or term "Nuisance," 657.1(1), https://www.legis.iowa.gov/docs/code/2026/657.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

42. Iowa General Assembly / Iowa Administrative Code, definition or term "Building regulations," 103A.3(3), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

43. Iowa General Assembly / Iowa Administrative Code, definition or term "Performance objective," 103A.3(20), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

44. Iowa General Assembly / Iowa Administrative Code, definition or term "Aquifer storage and recovery," 455B.261(2), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

45. Iowa General Assembly / Iowa Administrative Code, definition or term "Basin (groundwater)," 455B.261(3), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

46. Iowa General Assembly / Iowa Administrative Code, definition or term "Diffused waters," 455B.261(6), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

47. Iowa General Assembly / Iowa Administrative Code, definition or term "Permittee (water allocation)," 455B.261(13), https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

48. Iowa General Assembly / Iowa Administrative Code, definition or term "Closure (sanitary disposal project)," 455B.301(6), https://www.legis.iowa.gov/docs/code/2026/455B.301.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

49. Iowa General Assembly / Iowa Administrative Code, definition or term "Closure plan (sanitary disposal project)," 455B.301(7), https://www.legis.iowa.gov/docs/code/2026/455B.301.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

50. Iowa General Assembly / Iowa Administrative Code, definition or term "Financial assurance instrument (sanitary disposal project)," 455B.301(9), https://www.legis.iowa.gov/docs/code/2026/455B.301.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

51. Iowa General Assembly / Iowa Administrative Code, definition or term "Solid waste," 455B.301(29), https://www.legis.iowa.gov/docs/code/2026/455B.301.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

52. Iowa General Assembly / Iowa Administrative Code, definition or term "Cleanup (hazardous substance)," 455B.381(1), https://www.legis.iowa.gov/docs/code/2026/455B.381.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

53. Iowa General Assembly / Iowa Administrative Code, definition or term "Best management practice (BMP)," IAC 567—60.1(2), https://www.legis.iowa.gov/docs/iac/rule/567.60.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

54. Iowa General Assembly / Iowa Administrative Code, definition or term "Construction permit (wastewater)," IAC 567—60.1(2), https://www.legis.iowa.gov/docs/iac/rule/567.60.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

55. Iowa General Assembly / Iowa Administrative Code, definition or term "Fugitive dust," IAC 567—22.1, https://www.legis.iowa.gov/docs/iac/rule/02-25-2026.567.22.1.pdf. **Scope:** See the source provision for qualifications, exceptions, and the legally operative wording; the comparison table uses an attributed condensed restatement. ↩

56. Iowa law or administrative program for Special exception: Iowa Code §414.12(2), https://www.legis.iowa.gov/docs/code/2026/414.12.pdf. This citation does not imply that the state has enacted one universal zoning definition. ↩

57. Iowa law or administrative program for Variance: Iowa Code §414.12(3)–(4), https://www.legis.iowa.gov/docs/code/2026/414.12.pdf. This citation does not imply that the state has enacted one universal zoning definition. ↩

58. Iowa law or administrative program for Public welfare / general welfare: Iowa Code §364.1, https://www.legis.iowa.gov/docs/code/2026/364.1.pdf; §414.1, https://www.legis.iowa.gov/docs/code/2026/414.1.pdf; §414.3, https://www.legis.iowa.gov/docs/code/2026/414.3.pdf. This citation does not imply that the state has enacted one universal zoning definition. ↩

59. Iowa law or administrative program for Zoning uniformity: Iowa Code §414.2, https://www.legis.iowa.gov/docs/code/2026/414.2.pdf. This citation does not imply that the state has enacted one universal zoning definition. ↩

60. Iowa law or administrative program for Stormwater controls: IAC 567—60.1(4)(c), https://www.legis.iowa.gov/docs/iac/rule/567.60.1.pdf; Iowa Code §364.3, https://www.legis.iowa.gov/docs/code/2026/364.3.pdf. This citation does not imply that the state has enacted one universal zoning definition. ↩

61. City of Cascade, *Proposed Chapter 165 / M-2 Definitions Amendment*, November 3, 2026, independent discussion draft, https://github.com/ttbakiatwoam/cascade-data-center/blob/master/proposals/DRAFT-ORDINANCE-CH165-DEFINITIONS-2026-11-03.md. Proposed local meanings are **not** Iowa statutory definitions or enacted City law. ↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩↩

62. Oxford University Press, *Oxford English Dictionary*, https://www.oed.com/; selected publicly accessible links are to the distinct *Oxford Advanced Learner's Dictionary*, https://www.oxfordlearnersdictionaries.com/. These are independently authored sense summaries, not verified OED quotations. ↩

63. Merriam-Webster, *Merriam-Webster.com Dictionary*, https://www.merriam-webster.com/. A lookup link for a compound term does not establish that it is a dictionary headword. ↩

64. New York Law School, Mendik Library, “Free Online Legal Dictionaries & Glossaries,” https://libguides.nyls.edu/lowcostlegalresearch/freedict; Cornell Law School, Legal Information Institute, *Wex*, https://www.law.cornell.edu/wex; FindLaw, *FindLaw Legal Dictionary*, https://dictionary.findlaw.com/ (numerous entries attribute their original wording to *Merriam-Webster's Dictionary of Law* [1996]). The terms in the table are independently paraphrased and labeled direct, related, or unverified. ↩↩↩